

FEDERAL MARITIME COMMISSION

DOCKET NO. 25-03

EUROMARKET DESIGNS INC.

V.

MSC MEDITERRANEAN SHIPPING COMPANY, S.A., ET AL.

**RESPONDENT MSC MEDITERRANEAN SHIPPING COMPANY, S.A.'s
MOTION TO STAY PROCEEDING, FOR FILING OF AN AMENDED COMPLAINT,
AND FOR PARTIAL DISMISSAL**

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February 3, 2025

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Respondent MSC Mediterranean Shipping Company, S.A. ("MSC"), through undersigned counsel, hereby moves pursuant to 46 C.F.R. §§ 502.69, 502.70, and 502.71, for:

1. A stay of this proceeding until the final conclusion of pending federal court and Commission litigation, namely *MSC Mediterranean Shipping Company S.A. v. Federal Maritime Commission, et al.*, No. 24-1007 (D.C. Cir.) and the matter remanded to the Commission by *Evergreen Shipping Agency (America) Corp. v. Federal Maritime Commission*, No. 23-1052 (D.C. Cir. 2024).

2. An order requiring Complainant to file an amended complaint specifying the amount of damages sought from each individual Service Contract Respondent; and

3. Dismissal with prejudice Complainant's claim under 46 U.S.C. § 41104(a)(10).

A memorandum in support of these motions is submitted herewith.

Pursuant to 46 C.F.R. § 502.71, undersigned counsel has conferred with counsel for Complainant, who advises that Complainant will oppose this Motion.

Respectfully submitted,

COZEN O'CONNOR

By: s/ Wayne Rohde

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Dated: February 3, 2025

CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing was served upon the following via email transmission this 3rd day of February, 2025.

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